



FORMAL OBJECTION: Misdirection of Statutory Fraud (UI19) & Refusal to Exercise Mandated Duty

1 message

Wilbur William Matthee <info@ethichawks.co.za>
To: Cebo Kutuka (CPT) <Cebo.Kutuka@labour.gov.za>
Cc: Fezeka Ngalo (PO CPT) <Fezeka.Ngalo@labour.gov.za>, Hlanganisa Dalasile (CPT-PO) <Hlanganisa.Dalasile@labour.gov.za>
Bcc: wilburmat@gmail.com

Wed, 15 Apr 2026 at 15:30

Dear Mr. Kutuka,

Your response, notably addressed to a genetic 'Mr/Ms/Mrs,' confirms a failure to apply your mind to the basic facts of this case, including the identity of the complainant and the evidence provided. This lack of administrative mindfulness is reflected in your recommendation, which is a material misdirection of law.

Your recommendation to refer this matter to the CCMA is a material misdirection of law.

Jurisdiction: While the CCMA handles the dismissal, the UIF Act (Section 64) and the BCEA grant the DEL exclusive jurisdiction over the submission of fraudulent information to the state.

I have reported that the employer submitted a UI-19 citing "Voluntary Resignation" despite being served with a Notice of Automatically Unfair Constructive Dismissal. This is a Statutory Fraud intended to obstruct my access to the UIF fund—a criminal offense under the UIF Act.

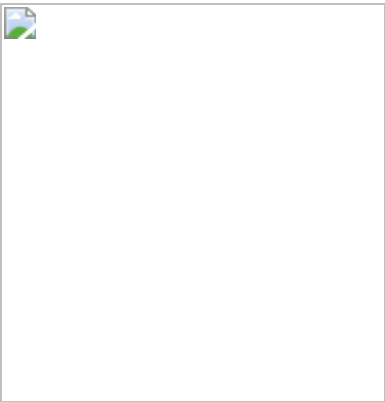
Your refusal to investigate this fraud because it "looks like a dismissal" is an act of Administrative Abandonment.

You are hereby served with a final 24-hour window to align with your colleague, Fezeka Ngalo (Provincial Specialist: OHS), who has already correctly allocated this case for investigation (Ref: 890903 5151 087) remains 13:30. Failure to confirm that the UI-19 fraud will be part of the integrated inspection will result in your name being cited personally in the Writ of Mandamus as an official refusing to perform a statutory duty.

I remain finished with silence.

Yours Professionally

Sr. Wilbur W Matthee
Specialist Registered Nurse, BTech (Psych, Midw,Comm), PG Dip HSM (NQF 8)
Health Services Management.
Founder EthicHawks (Forensic Governance and Compliance)



On Wed, Apr 15, 2026 at 2:55 PM, "Cebo Kutuka (CPT)" <Cebo.Kutuka@labour.gov.za> wrote:

Good afternoon Mr\Mrs\Ms William Matthee

Thank you for registering your complaint with the Department of Employment and Labour, however, I regret to inform you that DEL does not have jurisdiction on dismissal issues and your case is that of Constructive Dismissal which falls under CCMA. In the light of that I will recommend that you refer your matter to CCMA.

Thanking you in advance, hoping that this clarity will be considered favourable

Regards

Cebo Kutuka | Principal Inspector-BCEA & NMW | Provincial Office: Western Cape |

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Wearing a mask properly is of life-saving importance. You must wear your masks at all times when outside of your home. There can be no exceptions.

- You must avoid crowded and confined spaces at all costs. This is where super-spreader events take place.
- You must ensure there is good ventilation at all times whenever you're in public. The virus droplets spread by air in confined spaces, and so fresher is better.
- You must wash your hands regularly with soap and water or use sanitiser.
- If you feel sick, you should not leave your home unless it is to get healthcare treatment. You must first call our hotline on 080 928 4102 for guidance on the next steps.
- You should also not visit someone who is sick, and find other ways to provide support, like delivering a meal to a neighbour's doorstep.

From: Fezeka Ngalo (PO CPT) <Fezeka.Ngalo@LABOUR.gov.za>

Sent: Wednesday, 15 April 2026 12:35

To: Cebo Kutuka (CPT) <Cebo.Kutuka@labour.gov.za>; Hlanganisa Dalasile (CPT-PO) <Hlanganisa.Dalasile@labour.gov.za>

Subject: FW: FINAL DEMAND: 48-Hour Notice of Administrative Deadlock – Ref: Integrated Inspection [Medscheme/AfroCentric] – [890903 5151 087]

Dear colleagues

The mail below and the attached document bears reference, can you kindly allocate this case for investigation.

Thank you in advance.

Kind Regards

Fezeka Ngalo |Specialist: Occupational health and safety | Provincial Office: Western Cape |
| Room 626, 9 Long Street, Cape Town, 8001|

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From: Wilbur William Matthee <info@ethichawks.co.za>

Sent: Tuesday, 14 April 2026 14:26

To: David.Esau@labour.gov.za ; Fezeka Ngalo (PO CPT) <Fezeka.Ngalo@LABOUR.gov.za>

Cc: PublicProtector@ombudsman.org.za ; complaints@sahrc.org.za

Subject: FINAL DEMAND: 48-Hour Notice of Administrative Deadlock – Ref: Integrated Inspection [Medscheme/AfroCentric] – [890903 5151 087]

Dear Mr. Esau and Ms. Ngalo,

I refer to the integrated inspection allocated on 16 February 2026. Despite my repeated follow-ups and the BCEA department's referral to the UIF division, the Department has remained silent for over 60 days. This silence in the face of documented statutory fraud is no longer an "administrative delay"—it is a Deemed Refusal to Act.

I require an immediate Statement of Position on the following three points of law:

The Perjury/Resignation Obstruction: Does the DEL accept an employer's under-oath claim of "voluntary resignation" (Res1) when my formal Notice of Resignation (UI19) explicitly cited Automatically Unfair Constructive Dismissal due to a protected disclosure? By failing to intervene, the DEL is allowing a false narrative to block my constitutional right to social security.

The Service Certificate Misrepresentation: The employer has issued a Certificate of Service (CERT1) that misrepresents the nature of my departure and suppresses the occupational detriment I faced. I demand a Compliance Order to compel the correction of this statutory document.

The UIF Non-Remittance (Criminality): My June 2025 records (and others) confirm deductions were made from my salary but never remitted to the Fund. This is theft of statutory levies. Does the UIF department intend to prosecute this non-compliance, or is the whistleblower expected to bear the cost of the employer's criminality?

I am a Specialist Registered Nurse (NQF 8) currently homelessness and a medically documented PTSD collapse (MED1) because I am being denied access to my own security funds. Your department's inaction is the primary driver of this human rights violation.

If I do not receive a Case Reference Number and a Compliance Order regarding the June 2025 UIF gap by Thursday, 16 April 2026, at 14:30, I will:

Initiate an Urgent Mandamus Application in the High Court to compel the Department to perform its statutory duties.

Submit this entire chain of ignored correspondence to Daily Maverick and AmaBhungane as evidence of institutional failure.

Silence is no longer an option. The law requires you to act.

Yours professionally,

Sr. Wilbur W Matthee

Specialist Registered Nurse, BTech (Psych, Midw,Comm), PG Dip HSM (NQF 8)

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